

24STCV18083 24STCV18083

County: los-angeles

Division: Civil Law and Motion

Department: 509

Hearing date: 2026-07-02

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Case Number: 24STCV18083 Hearing Date: July 2, 2026 Dept: 509

Jose R. Solano v. Orange Kangaroo, LLC, et al.

(1) DEMURRER TO COMPLAINT

(2) MOTION TO STRIKE

MOVING PARTY: Defendant Orange Kangaroo, LLC; Harrison S. Won; and Yoomi Won

RESPONDING PARTY(S): Plaintiff Jose R. Solano

STATEMENT OF MATERIAL FACTS AND/OR PROCEEDINGS:

Plaintiff Jose R. Solano (Plaintiff) brings this action against defendants Orange Kangaroo, LLC, Harrison S. Won, Yoomi Won, and Yosemite Lopez, seeking quiet title to the property at 5502 Dobbs St. #74, Los Angeles, CA 90032. Plaintiff brings causes of action for: (1) quiet title; (2) fraud; (3) slander of title; (4) cancellation of written instrument; and (5) declaratory judgment.

Defendants Orange Kangaroo, LLC, Harrison S. Won, and Yoomi Won (Defendants) bring this demurrer to the Complaint. Plaintiff opposed.

This motion was originally scheduled for hearing on January 6, 2025.

On December 19, 2024, this Court stayed this matter in the entirety pending the Plaintiff's bankruptcy proceedings.

On June 22, 2026, this Court lifted the stay and rescheduled this motion to July 2, 2026.

There are three simultaneous actions currently pending between the parties:

-Unlawful Detainer Action: Orange Kangaroo, LLC v. Jose R. Solano, et al. (LASC No. 24STUD06273.)

-Civil Quiet Title Action: Jose R. Solano v. Orange Kangaroo, LLC (LASC No. 25STCV23323.) filed August 8, 2025, during the stay in this action.

-Federal Action: Jose R. Solano v. Orange Kangaroo, LLC, et al. (US Central District, Case No: 8:24-cv-01587-DMG-PP.)

TENTATIVE RULING:

Defendants' Demurrer to the First Cause of Action is OVERRULED.

Defendants' Demurrer to the Second, Third, Fourth, and Fifth Cause of Action is SUSTAINED.

Defendants' Motion to Strike is DENIED.

Whether leave to amend is granted on all causes of action will depend on whether Plaintiff can make an adequate offer of proof at the hearing that a successful amendment is reasonably possible.

Moving party is ordered to give notice, unless waived.

DISCUSSION:

Demurrer to Complaint

I. Meet and Confer

The Declaration of attorney Larry Rothman reflects the meet and confer requirement was satisfied.

II. Judicial Notice

Defendants seek judicial notice of defendant Yosemite Lopez's request for judicial notice. The Court takes judicial notice of Yosemite Lopez's request for judicial notice without assuming the truth of the assertions contained therein. (See Seelig v. Infinity Broad. Corp. (2002) 97 Cal.App.4th 798, 808.)

III. Legal Standard

A demurrer for sufficiency tests whether the complaint states a cause of action. (Hahn v. Mirda (2007) 147 Cal.App.4th 740, 747.) When considering demurrers, courts read the allegations liberally and in context. (Taylor v. City of Los Angeles Dept. of Water and Power (2006) 144 Cal.App.4th 1216, 1228.) In a demurrer proceeding, the defects must be apparent on the face of the pleading or by proper judicial notice. (Code Civ. Pro. § 430.30, subd. (a).) A demurrer tests the pleadings alone and not the evidence or other extrinsic matters. (SKF Farms v. Superior Court (1984) 153 Cal.App.3d 902, 905.) Therefore, it lies only where the defects appear on the face of the pleading or are judicially noticed. (Ibid.) The only issue involved in a demurrer hearing is whether the complaint, as it stands, unconnected with extraneous matters, states a cause of action. (Hahn, at p. 747.) "We treat the demurrer as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law." (Serrano v. Priest (1971) 5 Cal.App.3d 584, 591.) A "demurrer does not, however, admit

contentions, deductions or conclusions of fact or law alleged in the pleading, or the construction of instruments pleaded, or facts impossible in law.” (S. Shore Land Co. v. Petersen (1964) 226 Cal.App.2d 725, 732 (internal citations omitted).)

IV. Analysis

Defendants now demur to all causes of action in the complaint.

As an initial note, Defendants argue that this “case should be dismissed or stayed pending the final ruling on the Motion to Dismiss in Federal Court brought by the Plaintiff against Orange Kangaroo that is currently under submission.” (Mot. at p. 7:5-7.) While it appears that a decision in that action has been reached, the effect of this disposition was not briefed because this demurer was filed before the conclusion of the federal action. The effect of the federal action on this current action is therefore not addressed in this current ruling.

The Court, instead, addresses each cause of action in turn.

A. First Cause of Action (Quiet Title)

An action for quiet title seeks “to establish title against adverse claims to real or personal property or any interest therein.” (Code Civ. Proc., § 760.020, subd. (a).) In an action for quiet title, Plaintiff must plead (1) “[a] description of the property that is the subject of the action,” specifically the location of tangible personal property and the legal description and street address or common designation of real property, (2) “[t]he title of the plaintiff as to which a determination under this chapter is sought and the basis of the title,” (3) “[t]he adverse claims to the title of the plaintiff against which a determination is sought,” (4) “[t]he date as of which the determination is sought,” and (5) “[a] prayer for the determination of the title of the plaintiff against the adverse claims.” (Code Civ. Proc., § 761.020.)

Here, Plaintiff has made such allegations. Plaintiff seeks to quiet title 5502 Dobbs St. #74, Los Angeles, CA 90032, which he believes was wrongfully foreclosed upon by Defendants whom he alleges still asserts an interest in the property. Plaintiff alleges that he remains the sole owner of the property.

In the demurrer, Defendants brings various defenses that all rely upon factual determination not at issue in this motion. (See Hahn v. Mirda, supra, 147 Cal.App.4th at p. 747) For example, the assertion that “Plaintiff deeded the Property to Al McZeal in 2019” is evidence outside the allegations of the complaint. Even assuming such evidence was admissible on demurrer by way of judicial notice, Defendants’ request for judicial notice only requested judicial notice of the judicial notice filed by defendant Yosemite Lopez. The Court will not turn to an uninterested party’s filings for the truth of the assertions contained within them. (See Seelig v. Infinity Broad. Corp., supra, 97 Cal.App.4th at p. 808.)

Accordingly, Defendant’s demurer to the fourth cause of action is **OVERRULED**.

B. Second Cause of Action (Fraud)

“The elements of fraud are (a) a misrepresentation (false representation, concealment, or nondisclosure); (b) scienter or knowledge of its falsity; (c) intent to induce reliance; (d) justifiable reliance; and (e) resulting damage.” (Hinesley v. Oakshade Town Ctr. (2005) 135 Cal.App.4th 289, 294.) The facts constituting the alleged fraud must be alleged factually and specifically as to every element of fraud, as the policy of “liberal construction” of the pleadings will not ordinarily be invoked. (Lazar v. Superior Court (1996) 12 Cal.4th 631, 645.) To properly allege fraud against a corporation, the plaintiffs must plead the names of the persons allegedly making the false representations, their authority to speak, to whom they spoke, what they said or wrote, and when it was said or written. (Tarmann v. State Farm Mut. Auto. Ins. Co. (1991) 2 Cal.App.4th 153, 157.) Any cause of action for fraud or deceit, including negligent misrepresentation, must be pled with specificity, alleging facts showing “how, when, where, to whom, and by what means” fraudulent representations were made. (Cansino v. Bank of

America (2014) 224 Cal.App.4th 1462, 1469, quotations omitted; see also West v. JPMorgan Chase Bank, N.A. (2013) 214 Cal.App.4th 780.)

Here, Plaintiff alleges:

On or about May 1, 2024, Defendants recorded a fraudulent "Trustee Deed Upon Sale" falsely claiming that the property was sold at a foreclosure auction for \$390,000.

On March 5, 2024, Defendants falsely claimed to have conducted a foreclosure sale at 11:00 AM, despite no such sale taking place. Defendants subsequently filed an illegal eviction complaint on May 16, 2024, falsely claiming a right of possession from the fraudulent trustee sale.

On May 11, 2023, Defendants fraudulently served a 3/90 Day Notice to Quit and falsely asserted that Plaintiff was a renter rather than the owner. Defendants' actions have caused a cloud on Plaintiff's title, leading to damages including impaired marketability and reputational harm.

Publication: Defendants published false statements regarding Plaintiffs title to the property by recording the fraudulent Trustee Deed Upon Sale and other false documents.

Falsity: The statements published by Defendants were false. Plaintiff did not default on the mortgage. and no valid foreclosure sale occurred.

(Compl. at p. 8/14.)

Here, these allegations are insufficient to support the cause of action because Plaintiff does not provide any facts that indicate the statements were indeed false. Instead, Plaintiff conclusively alleges so. Because a "demurrer does not, however, admit contentions, deductions or conclusions of fact or law alleged in the pleading, or the construction of instruments pleaded, or facts impossible in law," Plaintiff has failed to allege sufficient facts to demonstrate Defendants engaged in fraud. (S. Shore Land Co. v. Petersen, supra, 226 Cal.App.2d at p. 732 (internal citations omitted).) Therefore, Plaintiff puts forth insufficient factual allegations to sustain a cause of action, let alone with the specificity to meet the heightened pleading standards required to sustain a cause of action for fraud.

Accordingly, Defendants' demurer to the second cause of action is SUSTAINED.

Generally, leave to amend must be allowed where there is a reasonable possibility of successful amendment. (Goodman v. Kennedy (1976) 18 Cal.3d 335, 348.) The burden is on the plaintiff to show the court that a pleading can be amended successfully. (Ibid.; Lewis v. YouTube, LLC (2015) 244 Cal.App.4th 118, 226.) Whether leave to amend is granted will depend on whether Plaintiffs can make an adequate offer of proof at the hearing that a successful amendment is reasonably possible.

C. Third Cause of Action (Slander of Title)

"The elements of a cause of action for slander of title are (1) a publication, which is (2) without privilege or justification, (3) false, and (4) causes pecuniary loss." (La Jolla Group II v. Bruce (2012) 211 Cal.App.4th 461, 472.) A recording of foreclosure documents constitutes privileged communication. (See Civ. Code, § 2924; Kachlon v. Markowitz (2008) 168 Cal.App.4th 316, 333-34.) Civil Code section 2924 provides that "[t]he mailing, publication, and delivery of notices as required by this section" constitute privileged communications pursuant to Section 47. (Civ. Code, § 2924(d)(1); see Olszewski v. Scripps Health (2003) 30 Cal.4th 798, 830-31 [finding that the litigation privilege extends to the recordation and filing of liens

in conjunction with a judicial proceeding to enforce it].)

Here, as above, Plaintiff alleges:

On or about May 1, 2024, Defendants recorded a fraudulent "Trustee Deed Upon Sale" falsely claiming that the property was sold at a foreclosure auction for \$390,000.

On March 5, 2024, Defendants falsely claimed to have conducted a foreclosure sale at 11:00 AM, despite no such sale taking place. Defendants subsequently filed an illegal eviction complaint on May 16, 2024, falsely claiming a right of possession from the fraudulent trustee sale.

On May 11, 2023, Defendants fraudulently served a 3/90 Day Notice to Quit and falsely asserted that Plaintiff was a renter rather than the owner. Defendants' actions have caused a cloud on Plaintiff's title, leading to damages including impaired marketability and reputational harm.

Publication: Defendants published false statements regarding Plaintiffs title to the property by recording the fraudulent Trustee Deed Upon Sale and other false documents.

(Compl. at p. 8/60.)

Here, all publications appear to be recorded foreclosure documents which are privileged. (*Kachlon v. Markowitz*, supra, 168 Cal.App.4th at p. 333-34.) Because slander of title requires the publication to not be privileged or justified, these allegations are insufficient to support a cause of action for slander of title. Plaintiff has not alleged that Defendants published a false, unprivileged, document.

Further, these allegations are insufficient because Plaintiff does not provide any facts that statements were false. Instead, Plaintiff conclusively alleges so. Because a "demurrer does not, however, admit contentions, deductions or conclusions of fact or law alleged in the pleading, or the construction of instruments pleaded, or facts impossible in law," Plaintiff has failed to allege sufficient facts to demonstrate Defendants published false information. (*S. Shore Land Co. v. Petersen*, supra, 226 Cal.App.2d at p. 732 (internal citations omitted).) Therefore, Plaintiff puts forth insufficient factual allegations to sustain a cause of action.

Accordingly, Defendants, demurer to the third cause of action is SUSTAINED.

Generally, leave to amend must be allowed where there is a reasonable possibility of successful amendment. (*Goodman v. Kennedy* (1976) 18 Cal.3d 335, 348.) The burden is on the plaintiff to show the court that a pleading can be amended successfully. (*Ibid.*; *Lewis v. YouTube, LLC* (2015) 244 Cal.App.4th 118, 226.) Whether leave to amend is granted will depend on whether Plaintiffs can make an adequate offer of proof at the hearing that a successful amendment is reasonably possible.

D. Fourth Cause of Action (Cancellation of Written Instrument)

Civil Code, section 3412 provides that "[a] written instrument, in respect to which there is a reasonable apprehension that if left outstanding it may cause serious injury to a person against whom it is void or voidable, may, upon his application, be so adjudged, and ordered to be delivered up or canceled." "To prevail on a claim to cancel an instrument, a plaintiff must prove (1) the instrument is void or voidable due to, for example, fraud; and (2) there is a reasonable apprehension of serious injury including pecuniary loss or the prejudicial alteration of one's position." (*U.S. Bank National Association v. Naifeh* (2016) 1 Cal.App.5th 767, 778.)

Here, Plaintiff alleges, “[t]here is in existence certain written instruments which purports to be: TRUSTEE DEED UPON SALE - FALSE RECORDING EVICTION FRAUD: ILLEGAL EVICTION COMPLAINT TRUSTEE DEED UPON SALE (FALSE FORECLOSURE) 3/90 DAY NOTICE TO QUIT FRAUDULENT NOTICE.” (Compl. at p. 11/60.) While Plaintiff alleges “[t]he Defendants engaged in a scheme involving the false recording of a trustee’s deed upon sale, fraudulent foreclosure proceedings, illegal eviction actions, and false rent claims,” nowhere does Plaintiff put forth any facts demonstrating how any of these proceedings were fraudulent or false. (Compl. at p. 3/60.) Instead, Plaintiff conclusively alleges so. Because a “demurrer does not, however, admit contentions, deductions or conclusions of fact or law alleged in the pleading, or the construction of instruments pleaded, or facts impossible in law,” Plaintiff has failed to allege sufficient facts to demonstrate the instrument is void or voidable. (*S. Shore Land Co. v. Petersen*, supra, 226 Cal.App.2d at p. 732 (internal citations omitted).) As a result, Plaintiff has failed to allege sufficient facts to state a cause of action for the cancellation of a written instrument.

Accordingly, Defendants’ demurer to the fourth cause of action is SUSTAINED.

Generally, leave to amend must be allowed where there is a reasonable possibility of successful amendment. (*Goodman v. Kennedy* (1976) 18 Cal.3d 335, 348.) The burden is on the plaintiff to show the court that a pleading can be amended successfully. (*Ibid.*; *Lewis v. YouTube, LLC* (2015) 244 Cal.App.4th 118, 226.) Whether leave to amend is granted will depend on whether Plaintiffs can make an adequate offer of proof at the hearing that a successful amendment is reasonably possible.

E. Fifth Cause of Action (Declaratory Relief)

“To qualify for declaratory relief, a party would have to demonstrate its action presented two essential elements: (1) a proper subject of declaratory relief, and (2) an actual controversy involving justiciable questions relating to the party’s rights or obligations.” (*Jolley v. Chase Home Finance, LLC* (2013) 213 Cal.App.4th 872, 909, quotation marks and brackets omitted.)

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A cause of action for declaratory relief should not be used as a second cause of action for the determination of identical issues raised in another cause of action. (General of America Insurance Co. v. Lilly (1968) 258 Cal.App.2d 465, 470.) “The availability of another form of relief that is adequate will usually justify refusal to grant declaratory relief.” (*California Insurance Guarantee Association v. Superior Court* (1991) 231 Cal.App.3d 1617, 1624), and a duplicative cause of action is subject to demurrer. (*Palm Springs Villas II Homeowners Association, Inc. v. Parth* (2016) 248 Cal.App.4th 268, 290.)

Here, Plaintiff’s cause of action arises entirely out of the request for “a judicial determination of rights and duties, and a declaration as actual title and ownership of the subject property.” (Compl. at p. 13/60.) This is entirely duplicative of the quiet title cause of action and is therefore subject to demurrer.

Accordingly, Defendants’ demurer to the fifth cause of action is SUSTAINED.

Generally, leave to amend must be allowed where there is a reasonable possibility of successful amendment. (*Goodman v. Kennedy* (1976) 18 Cal.3d 335, 348.) The burden is on the plaintiff to show the court that a pleading can be amended successfully. (*Ibid.*; *Lewis v. YouTube, LLC* (2015) 244 Cal.App.4th 118, 226.) Whether leave to amend is granted will depend on whether Plaintiffs can make an adequate offer of proof at the hearing that a successful amendment is reasonably possible.

Motion to Strike

I. Legal Standard

A motion to strike lies either (1) to strike any irrelevant, false or improper matter inserted in any pleading; or (2) to strike any pleading or part thereof not drawn or filed in conformity with the laws of this state, a court rule or order of court. (Code Civ. Pro § 436.)

II. Analysis

Here, Defendants appear to have confused a special motion to strike (Code Civ. Pro § 425.16) with a motion to strike under Code Civ. Pro § 436.

Here, Defendants motion is titled "MOTION TO STRIKE (ANTI-SLAPP)" and is noticed as bringing "this Motion to Strike – Anti-Slapp under Code of Civil Procedure Section 425.16 to the Complaint." (Not of Mot. at p. 2:4-5.) However, the memorandum of points and authorities does not include the two-part test required under Section 425.16. Instead, it appears that Defendants filed a motion to strike by simply copying and pasting the arguments presented in the demurrer. There is no argument that this action is subject to Section 425.16.

As Defendants' motion to strike is identical to the demurrer above, Defendants' motion to strike is DENIED.

IT IS SO ORDERED.

Dated: July 2, 2026 _____

Randolph M. Hammock

Judge of the Superior Court